

25VECV02269 25VECV02269

County: los-angeles

Division: Civil Law and Motion

Department: NWI

Hearing date: 2026-08-26

Motion: MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

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Case Number: 25VECV02269 Hearing Date: August 26, 2026 Dept: NWI

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

ALIREZA

GHOORCHIAN, et al.,

Plaintiffs,

vs.

SURRINDER KUMAR MALHI, et al.,

Defendants.

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CASE

NO: 25VECV02269

[TENTATIVE]

ORDER RE: MOTION FOR LEAVE TO FILE CROSS-COMPLAINT

Dept.

I

HEARING

DATE: August 26, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: April 23, 2025

TRIAL

DATE: None set.

I.

BACKGROUND

This is a contractual fraud action arising out of the sale and purchase of the real property located at 20150-20152 Baltar St., Winnetka, CA 91306 (the "Subject Property"). On April 23, 2025, Plaintiffs Alireza Ghoorchian ("Ghoorchian") and Ayda Nosrati ("Nosrati") (collectively, "Plaintiffs") filed a Complaint against Defendants Surrinder Kumar Malhi; Paramjit Kumar Malhi; Sansui Holdings LLC ("Sansui"); and DOES 1 through 20 (collectively, "Defendants"), alleging causes of action for: (1) Breach of Contract; (2) Fraudulent Concealment; (3) Violation of California Civ. Code § 1102; (4) Violation of California Civ. Code § 896; and (5) Violation of Business and Profession Code § 7044.

On August 20, 2025, Defendants Surrinder Kumar Malhi and Paramjit Kumar Malhi (hereinafter, "Malhi Defendants") filed their joint Answer to the Complaint.

On January 30, 2026, Plaintiffs filed a Motion for Leave to

File First Amended Complaint. The matter came for hearing on February 27, 2026;

the motion was granted. On March 3, 2026, Plaintiffs filed the operative First

Amended Complaint ("FAC") against Defendants, alleging causes of action for:

(1) Breach of Contract; (2) Fraudulent Concealment; (3) Violation of California

Civ. Code § 1102; (4) Violation of California Civ. Code § 896; (5) Violation of

Business and Profession Code § 7044; (6) Fraudulent Conveyance; and (7)

Constructive Fraud – Civ. Code §§ 3439.04(A)(2), 3439.05.

On March 4, 2026, Plaintiffs filed an Amendment to the Fac

identifying SSW Holding LLC as Doe 1.

On April 1, 2026, SSW Holdings, LLC ("SSW"), erroneously

sued as SSW Holding LLC, filed its Answer to the FAC. On April 3, 2026, the

Malhi Defendants filed their Answer to the FAC.

On July 6, 2026, the Malhi Defendants filed the instant

Motion for Leave to File Cross-Complaint. Any opposition would have been due on

August 13, 2026. To date, no opposition has been filed.

II.

LEGAL

STANDARDS

"A party against whom a cause of action has been

asserted in a complaint or cross-complaint may file a cross-complaint...against

any of the parties who filed the complaint or cross-complaint against him”

before or at the same time as the answer to the complaint or cross-complaint,

or any time before the court has set a trial date. (Code Civ. Proc., § 428.10,

subd. (a); Code Civ. Proc. § 428.50, subd. (a) [same time as answer]; Code Civ.

Proc. § 428.50, subd. (b) [any time before trial date].) A party may also

file a cross-complaint “against a person alleged to be liable thereon,

whether or not such person is already a party to the action, if the cause of

action asserted in his cross-complaint (1) arises out of the same transaction,

occurrence, or series of transactions or occurrences as the cause brought

against him or (2) asserts a claim, right, or interest in the property or

controversy which is the subject of the cause brought against him.” (Code Civ.

Proc., § 428.10, subd. (b).) A party shall obtain leave of court to file any

cross-complaint except one filed within the time specified in subdivision (a)

or (b).” (Code Civ. Proc. § 428.50, subd. (c).)

If the proposed cross-complaint is compulsory, then

leave must be granted so long as the defendant is acting in good faith. (Code

Civ. Proc. § 426.50.) If the proposed cross-complaint is permissive, leave of

court may be granted “in the interest of justice” at any time during the

course of the action. (Code Civ. Proc. § 428.50, subd. (c).) “Permission

to file a permissive cross-complaint is solely within the trial court’s

discretion.” (Crocker Nat. Bank v. Emerald (1990) 221 Cal.App.3d

852, 864.) “The purpose of allowing a cross-complaint is to enable all

matters in dispute between the parties relating to or depending upon the

contract, transaction or subject matter upon which the action is brought or affecting

the property to which it relates, to be determined by a single action and by a

single judgment. In other words, to avoid a multiplicity of suits and thereby

save vexation and expense.” (Bracey v. Gray (1944) 65 Cal.App.2d

282, 285–286.)

III.

DISCUSSION

The Malhi Defendants move for an order permitting them to

file their proposed Cross-Complaint against Plaintiffs on the grounds that

there are completely new facts post the filing of their Answer, which give rise

to the proposed cross-claims for (1) Tortious Interference with Contractual

Relationship; (2) Tortious Interference with Prospective Economic Advantage;

(3) Defamation; and (4) Slander of Title. (Green Decl., ¶14, Ex. A.)

Specifically, the Malhi Defendants own a property located

at 20151 Strathern Street, Winnetka, CA (the “Strathern Property”), which is

adjacent to the Subject Property at issue in this instant case. (Green Decl.,

¶7.) On June 14, 2026, Defendant Surrinder Malhi called his counsel of record,

G. Richard Green, and told him that Ghoorchian has been approaching prospective buyers for the Strathern Property and making various false statements about the condition of the residence causing these prospective buyers to leave the open house showings. (Id., ¶8.) Furthermore, Ghoorchian has put up multiple signs of a home with fire and damages depicted in pictures and implying that it is the Strathern Property. (Id., ¶9.) Mr. Green later spoke with the Malhi Defendants real estate agent, Alex Galuz, who confirmed that Ghoorchian had been harassing, aggressive, and scary. (Id., ¶11.) Mr. Galuz also told Mr. Green that Ghoorchian was preventing people from coming into the Strathern Property for the open house, which led to Mr. Galuz canceling the open house and marketing of the Strathern Property for sale. (Id., ¶12.)

Essentially, Plaintiffs allege that the Malhi Defendants concealed defective conditions on the Subject property to induce them to purchase the Subject Property (FAC, ¶¶10-17) and the Malhi Defendants' proposed cross-claims allege that Plaintiffs are preventing them from selling their adjacent property, the Strathern Property, by making false statements about the condition of the Strathern Property to prospective buyers. Thus, although this present action involves the purchase and sale of the Subject Property including the alleged concealment of the defective conditions on the Subject Property, the Malhi Defendants seek to assert claims of purported retaliatory actions by

Plaintiffs in response to this instant lawsuit. Moreover, Plaintiffs have not opposed this instant motion, therefore, Plaintiffs concede on this issue. (See California Rules of Court, Rule 3.1113, subd. (a); see also Rule 3.1320(f); Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20 [the party who fails to argue an issue abandons that issue].)

Accordingly, the Malhi Defendants have shown that their proposed cross-claims concern matters of dispute against Plaintiffs, which should be heard in this present lawsuit to avoid multiplicity of suits and in the interests of justice and judicial economy.

IV.

CONCLUSION

Based

on the foregoing, Defendants' Surrinder Kumar Malhi and Paramjit Kumar Malhi

Motion for Leave to File Cross-Complaint is GRANTED. The proposed

Cross-Complaint to be filed and served separately within 5 days of this

Order. Responsive pleading to be filed

and served 30 days thereafter. .

Defendants Surrinder Kumar Malhi and

Paramjit Kumar Malhi to give notice.

Dated: August

26, 2026

Hon. Karen Moskowitz

Judge

of the Superior Court